ETABLIX

INTEGRATED SITE SERVICES

A trading name of JNN GLOBAL LTD · Company number 15405437

WORKING BRIEF

MARESCONNECT NDA: WHAT IT COMMITS US TO

internal working document — not for issue to a client or a buyer

Document	MaresConnect NDA: what it commits us to
Source	business/bids/maresconnect-nda-review.md
Rendered	21 October 2026
Status	Rendered from the markdown source. Edit the source and re-run; do not edit this file.

Mutual non-disclosure agreement, MaresConnect Limited (Ireland, 605488) and JNN Global Ltd (England and Wales, 15405437). Filled for signature at *business/bids/MaresConnect-NDA-JNN-Global-Ltd-for-signature.docx*.

The Proposed Transaction is the **EPC of the MaresConnect Interconnector** — a 750MW link between Dublin and North Wales. Signing is the gate to the EPC process; it is not a bid and carries no obligation to make one.

Two template errors corrected before signing

The document was dated **2025** and described the counterparty as incorporated under **the laws of Ireland**. Both were placeholder defaults. Corrected to 2026 and England and Wales. Day and month left blank: the parties date on execution.

The clause that costs us something

Clause 4.1.5. The Recipient shall not

> initiate contact or communicate with any Representative, Adviser of the Discloser … or any landlord, lender, customer or supplier of the Group, in connection with the Proposed Transaction.

Once this is signed, **we cannot approach MaresConnect's contractors or suppliers about the MaresConnect project** without Mares' prior written consent.

It is limited to *in connection with the Proposed Transaction*, so ordinary business development with those same firms is unaffected — but it bites directly on the trigger watch. If the queue surfaces a MaresConnect award, the winner must not be written to about that scheme. Clause 4.2 permits it with written consent, so the answer is to ask Mares, not to assume either way.

This is the operative restriction and it is easy to breach by accident, because the watcher is designed to find exactly those moments and the approach drafts do not know about this agreement.

Three things to know and not negotiate

Irish law, exclusive Irish jurisdiction (14.10). Any dispute goes to Dublin. Normal for an Irish-registered developer; a real cost if it ever matters.

It is called mutual and is not quite. Clause 5.3 lets Mares disclose our confidential information to any Group member, adviser, and any current or prospective shareholder, investor or financier. We get no equivalent right. In practice harmless — we have no investors to share with — so not worth raising.

Clause 13.2 is clumsily drafted. It bars transferring personal data "outside the EEA, (and, if the United Kingdom ceases to be part of the EEA, the United Kingdom)" — written as a future possibility when it has already happened. The sensible reading is that the EEA and the UK are both permitted, which works for a Birmingham company. Settle it with one line in the covering email rather than a redline: *"We read clause 13.2 as permitting personal data to remain within the EEA and the United Kingdom. Please confirm."*

A redline from an unknown counterparty costs two weeks. A question costs nothing.

What it does not commit us to

Clause 14.2: Mares need not give us anything it does not wish to. Clause 14.3: either party may end negotiations at any time, no liability. Clause 10: no warranty, and disclosure creates no obligation to contract. Clause 14.4: obligations end three years from the date of the Agreement.

Before sending

Delete the two remaining comments in Word (Review → Delete All Comments). They are the drafter's own notes asking for the contracting company's details and the execution block — both now filled.

The MaresConnect contract notice the watcher found carried a **participation deadline of 31 October 2026**. If this agreement is the gate to that, it needs signing and returning this week.